

GZ: 2021-0.909.100 dated June 12, 2023 (Case Number: DSB-D124.4462)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of Mag. Alfons A*** (complainant) dated July 17, 2021 against the Regional Court of Wiener Neustadt (respondent) regarding the violation of the right to erasure as follows:

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The complaint is dismissed.

Legal bases: Art. 51 para. 1, Art. 55 para. 3, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 80 of the Court Organization Act (GOG), Federal Law Gazette No. 217/1896 as amended.

REASONING

A. Submissions of the Parties and Procedural History

A.1. In a letter initiating the proceedings dated July 17, 2021, the complainant summarized that the respondent had stored data and information about his highly personal asset data (cash, gold, silver coins, coin collection, and similar). He had submitted a request for erasure from the judicial process automation (VJ) in this regard. The Data Protection Authority had already affirmed its jurisdiction over the register in the decision dated July 7, 2020, under case number D124.1796; 2020-0.205.284.

The complainant had initially submitted his request to the Federal Ministry of Justice and received a response stating that the public prosecutors and courts were responsible for this matter. He subsequently submitted erasure requests to the Regional Court of Wiener Neustadt (the respondent in the present proceedings), the Regional Court of St. Pölten, and the Public Prosecutor's Office in St. Pölten.

The respondent did not provide a response to the erasure request.

According to § 75 para. 1 of the Code of Criminal Procedure (StPO), "Incorrect or unlawfully obtained data [...] must be corrected or erased without delay." The asset data had already been incorrect at the time of creation; furthermore, the data had been illegally collected.

A.2. In a letter dated November 25, 2021, the respondent summarized that the processing of personal data in question was exempt from supervision by the Data Protection Authority according to Art. 55 para. 3 GDPR and § 31 para. 1 DSG. Moreover, the conditions of § 75 StPO would not be met, and the inaccuracy was merely claimed by the complainant.

A.3. In a letter dated December 26, 2021, the complainant summarized in the context of the granted right to be heard that all proceedings had solely involved false accusations and that the data should be erased according to § 75 para. 1 StPO. Furthermore, the Data Protection Authority was responsible for handling the matter.

B. Subject of the Complaint

Based on the submissions of the complainant, the subject of the complaint is the question of whether the respondent violated the complainant's right to erasure by not following his request.

First, it must be examined whether the Data Protection Authority is competent for substantive assessment.

C. Findings of Fact

C.1. The complainant submitted a request for the erasure of his asset data in a letter dated May 3, 2021, literally "asset data concerning cash, gold, silver coins, silver bars, coin collection, and similar" (formatting not reproduced 1:1):

[Note from the editor: The letter reproduced here as a facsimile (graphic file) cannot be

pseudonymized with reasonable effort and has therefore been removed.]

C.2. The respondent did not respond to this request before the complaint was filed. In the context of the proceedings before the Data Protection Authority, the respondent rejected the erasure.

Assessment of Evidence: These findings result from the complaint dated July 17, 2021, and the letter dated May 3, 2021 attached to it, as well as – particularly regarding the rejected erasure – from the respondent's statement dated November 25, 2021.

D. From a legal perspective, it follows:

D.1. Regarding the jurisdiction of the Data Protection Authority:

According to Art. 55 para. 3 GDPR, supervisory authorities are not responsible for the supervision of processing carried out by courts in the course of their judicial activities, whereby Recital 20 of the GDPR states that this is intended to serve the independence of the judiciary in the exercise of its judicial tasks, including its decision-making.

While the GDPR does not provide further details on the term judicial activity, established literature opinion holds that matters to be handled within the framework of directive-bound judicial administration do not fall under the term "judicial activity" (see Schmidl in Gantschacher/Jelinek/Schmidl/Spanberger, Commentary on the General Data Protection Regulation [2017] Art. 55 Note 3; Nguyen in Gola, General Data Protection Regulation [2017] Art. 55 para. 13; Selmayr in Ehmann/Selmayr, GDPR [2017] Art. 55 para. 12 et seq.).

According to the consistent practice of the Data Protection Authority, a court's activity within the framework of judicial activity exists when a judge is exercising their judicial office or when a judge or prosecutor is otherwise free from directives in the performance of their assigned official duties (see the decisions of October 16, 2018, GZ: DSB-D123.461/0004-DSB/2018, and January 22, 2019, GZ: DSB-D123.848/0001-DSB/2019).

The CJEU stated in its judgment of March 24, 2022, in C-245/20 regarding the interpretation of Art. 55 para. 3 GDPR, the following (emphasis added by the DSB):

“28 To determine the scope of the term of processing carried out by courts in the context of their judicial activity within the meaning of Art. 55 para. 3 of Regulation 2016/679, it should be noted that, when interpreting a provision of Union law, not only its wording but also its context and the objectives pursued by the regulation to which it belongs must be taken into account (see, in this sense, *inter alia*, judgment of October 6, 2020, *Jobcenter Krefeld*, C-181/19, EU:C:2020:794, para. 61 and the case law cited therein).

29 In this regard, it follows from Art. 55 of Regulation 2016/679 that this article establishes the competence for the supervision of the processing of personal data and, in particular, aims to limit the competence assigned to the national supervisory authority.

30 Art. 55 para. 3 of Regulation 2016/679 therefore stipulates that national supervisory authorities are not competent for processing carried out by courts “in the context of their judicial activity”.

31 According to Recital 20 of Regulation 2016/679, in light of which Art. 55 para. 3 of the Regulation is to be interpreted, special bodies within the judicial system of the relevant Member State should be entrusted with the supervision of processing operations carried out by courts “in the context of their judicial activity”, and not its supervisory authority, so that “the independence of the judiciary in the exercise of its judicial functions, including its decision-making, remains intact”.

32 As the Advocate General stated in paragraphs 80 and 81 of his conclusions, it follows from the wording of Recital 20 of Regulation 2016/679 and, in particular, from the use of the word “including”, that the scope of the objective pursued by Art. 55 para. 3 of the Regulation, to preserve the independence of the judiciary in the exercise of its judicial functions, cannot be limited solely to ensuring judicial independence in the context of issuing a specific judicial decision.

33 The preservation of the independence of the judiciary generally requires that judicial functions be exercised in complete autonomy, without the courts being hierarchically connected to or subordinate to any body and without receiving orders or instructions from any body, so that they are thus protected

from external interference or pressure that could jeopardize the independence of their members' judgments and influence their decisions. The preservation of the independence required by Union law...

****Guarantees of Independence and Impartiality****

Guarantees of independence and impartiality require that there are rules in place that allow for the removal of any legitimate doubts among those subject to the law regarding the susceptibility of the relevant institution to external factors and its neutrality concerning the interests involved (see, in this sense, among others, judgments of February 27, 2018, *Associação Sindical dos Juizes Portugueses*, C-64/16, EU:C:2018:117, para. 44; July 25, 2018, *Minister for Justice and Equality [Deficiencies in the Justice System]*, C-216/18 PPU, EU:C:2018:586, para. 63; June 24, 2019, *Commission/Poland [Independence of the Supreme Court]*, C-619/18, EU:C:2019:531, para. 72; and December 21, 2021, *Euro Box Promotion et al.*, C-357/19, C-379/19, C-547/19, C-811/19, C-840/19, EU:C:2021:1034, para. 225).

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Consequently, the reference in Article 55(3) of Regulation 2016/679 to processing carried out by courts "in the course of their judicial activities" within the context of the Regulation should be understood as not being limited to the processing of personal data conducted by courts in the context of specific legal cases, but rather encompasses all processing operations carried out by courts in the course of their judicial activities, such that processing operations are excluded from the jurisdiction of the supervisory authority, the oversight of which could indirectly or directly influence the independence of the members or the decisions of the courts.

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The nature and purpose of the processing carried out by a court are primarily related to the examination of the legality of this processing; however, they may indicate that the processing by this court is part of its "judicial activity." It should be noted that the term "judicial activity" is an autonomous term of Union law, which cannot be interpreted based on the national understanding of the term in relation to monocratic or collegial judicial administration. As indicated in the cited judgment, the concept of judicial activity extends beyond the national understanding of judicial administration.

In this case, the processing in question is related to the management of court records, which is also part of fulfilling the tasks of the ordinary judiciary. Based on the broad understanding of the CJEU regarding the term judicial activity, it must be assumed that the processing of personal data in connection with the content of court records in the eJustice system according to § 80(2) GOG must also be subsumed under this. In particular, it must also be assumed that an examination and – as requested by the complainant – deletion of their personal data from the judicial process automation (which could also entail a deletion in the paper file) indeed requires the action of a judge in the exercise of their judicial office.

To the extent that the complainant asserts that the data protection authority confirmed its jurisdiction regarding the judicial process automation with decision dated July 7, 2020, under business number D124.1796, 2020-0.205.284, it must be countered that the BVwG, in its decision of March 31, 2023, GZ: W258 2234709-1/11E, regarding the contested decision D124.1796, 2020-0.205.284, stated that the data protection authority is incompetent to address the matter. The BVwG correctly states – in light of the CJEU judgment of March 24, 2022 – that even an indirect influence on the independence of a court's decisions is sufficient to exclude the control authority of the national supervisory authority under Article 55(3) GDPR. Since judges can access the information in the VJ – such as evidence, decisions, and their reasoning, which have been used in other similar proceedings – the data processing in the VJ may influence the formation of opinions and thus the decisions of courts. Therefore, oversight of data processing in the VJ by the data protection authority is excluded in the sense of the cited CJEU case law on C-245/20.

****D.2. Conclusion****

Based on the arguments presented by the BVwG and the cited CJEU judgment, in which the term

"judicial activity" is broadly interpreted, the conditions of Article 55(3) GDPR are fulfilled in this case. Therefore, a decision was to be made accordingly.